

**SUPERIOR COURT, STATE OF CALIFORNIA
COUNTY OF SANTA CLARA**

Department 1
Honorable Eunice Lee, Presiding
TBD, Courtroom Clerk
191 North First Street, San Jose, CA 95113

DATE: September 24, 2026 TIME: 9:00 A.M. and 9:01 A.M.

**To contest the ruling, call the Court at (408) 808-6856 before 4:00 P.M.
Make sure to also let the other side know before 4:00 P.M. that you plan to contest the ruling,
in accordance with California Rule of Court, Rule 3.1308(a)(1) and Local Rule 8D.**

****Please specify the issue to be contested when calling the Court and counsel****

LAW AND MOTION TENTATIVE RULINGS

9:01 A.M.			
<u>LINE 1</u>	23CV416339	Cathay Bank vs RPRO152N3, LLC et al	Hearing: Order of Examination Parties to appear.
<u>LINE 2</u>	26CV495044	American Auto Financing vs Watsonville Auto Sales et al	Hearing: Order of Examination Parties to appear.
<u>LINE 3</u>	26CV493370	Emmanuel Haro et al vs Albertson's LLC, a Delaware corporation et al	Motion to Withdraw as Attorney Parties to appear.

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9:00 A.M.

Calendar Line # 2

Case Name Marconi De Miranda vs Hermes Muniz et al

Case No. 24CV442613

Motion for Leave to File

I. BACKGROUND

On July 15, 2026, Defendant Hermes Muniz filed a motion for leave to file a cross-complaint.

On August 31, 2026, Plaintiff Marconi de Miranda filed a notice of conditional non-opposition indicating he will challenge the cross-complaint by way of a separate demurrer or other responsive pleading.

II. LEGAL STANDARD

Pursuant to Code of Civil Procedure section 473(a)(1), if a plaintiff wishes to amend a complaint after the answer has been filed or after the demurrer has been filed and after the hearing on the demurrer, or if he or she has already amended the complaint “of course,” permission of the court must be obtained before the amendment will be allowed. Motions for leave to amend the pleadings are directed to the sound discretion of the court. “The court may, in furtherance of justice, and on any terms as may be proper, allow a party to amend any pleading” (Code of Civ. Proc., § 473(a)(1); see Code of Civ. Proc., § 576). Policy favors liberally granting leave to amend so that all disputed matters between the parties may be resolved. (*Howard v. County of San Diego* (2010) 184 Cal.App.4th 1422, 1428). Absent prejudice to the adverse party, the court may permit amendments to the complaint “at any stage of the proceedings, up to and including trial.” (*Atkinson v. Elk Corp.* (2003) 109 Cal.App.4th 739, 761 [internal quotes omitted]).

While denial is rarely justified, a judge has discretion to deny leave to amend if the party seeking the amendment has been dilatory, and the delay has prejudiced the opposing party. (*Morgan v. Sup.Ct.* (1959) 172 Cal.App.2d 527, 530; see also *Hirsa v. Superior Court* (1981) 118 Cal.App.3d 486, 490). An opposing party is prejudiced where the amendment would necessitate a trial delay along with a loss of critical evidence, added preparation expense, increased burden of discovery, etc. (*Magpali v. Farmers Group, Inc.* (1996) 48 Cal.App.4th 471, 486-488).

The court will not consider the validity of the proposed amended pleading in ruling on a motion for leave since grounds for a demurrer or motion to strike are premature. However, the court, does have discretion to deny leave to amend where a proposed amendment fails to state a valid cause of action as a matter of law and the defect cannot be cured by further amendment. (*California Casualty General Ins. Co. v. Superior Court* (1985) 173 Cal.App.3d 274, 281 (overruled on other grounds by *Kransco v. American Empire Surplus Lines Ins. Co.* (2000) 23 Cal.4th 390)).

III. ANALYSIS

Here, Defendant Muniz filed a motion for leave to file a cross-complaint. The Plaintiff filed a non-opposition to the motion, reserving the right to challenge the cross-complaint by demurrer or other responsive pleading.

The Court finds that the leave to amend is appropriate and Defendant has satisfactorily demonstrated the effect of the amendment and why the amendment is necessary and proper. The Court also notes the longstanding policy favoring leave to amend.

IV. CONCLUSION

Based on the foregoing, the non-opposition, the Court GRANTS Defendant’s motion for leave to file a cross-complaint. The Court will prepare the formal Order.

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